

TENTATIVE RULINGS

DEPARTMENT C33

Judge Sandy N. Leal

May 21, 2026 at 10:00 AM

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's website for rules and procedures for court reporters obtained by the Parties.

Tentative rulings: The Court endeavors to post tentative rulings on the Court's website in the morning, prior to the hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the Department for tentative rulings if tentative rulings have not been posted. The Court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5233. Please do not call the Department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.*, 205 Cal.App.4th 436, 442, fn. 1 (2012.))

Appearances: Department C33 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C33 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California.

All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time. All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this Department by either coming to the Department at the designated hearing time or contacting the Courtroom Clerk at (657) 622-5233 to obtain login information. For remote appearances by the media or public, please contact the Courtroom Clerk 24 hours in advance so as not to interrupt the hearings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
1	25-01453685 <i>Adams vs. Colliers International Group, Inc.</i>	1) Motion to Appear Pro Hac Vice 2) Motion to Compel Production Plaintiffs Irene Adams and West Palmyra Ltd.'s motion to compel Defendant Colliers International Group Inc. to serve further responses to Plaintiffs' Requests for Production of Documents, Set One, and to produce all responsive, non-privileged documents is CONTINUED to [REDACTED]. Plaintiffs seek to compel a further response to Request Nos. 1-82. The rule requiring a good faith effort to meet and confer about discovery disputes "is designed to encourage the parties to work out their differences informally so as to avoid the necessity for a formal order . . . [t]his, in turn, will lessen the burden on the court and reduce the unnecessary expenditure of resources by litigants through promotion of informal, extrajudicial resolution of discovery disputes." (<i>Stewart v. Colonial Western Agency, Inc.</i> (2001) 87 Cal.App.4th 1006, 1016.) "The level of effort at informal resolution which satisfies the 'reasonable and good faith attempt' standard depends upon the circumstances. In a larger, more complex discovery context, a greater effort at informal resolution may be warranted. In a simpler, or more narrowly focused case, a more modest effort may suffice." (<i>Obregon v. Superior Court</i> (1998) 67 Cal.App.4th 424, 431.) Despite efforts by Plaintiff to meet and confer, Defendant failed to meaningfully meet and confer with Plaintiff. Plaintiff has shown on December 18, 2025, Plaintiffs' counsel sent a meet and confer letter to Defendant's counsel of record, Larissa G. Nefulda. (Dardashti Decl., ¶ 7, Ex. C.) Plaintiffs' counsel did not receive a response, and on December 30, 2025, Plaintiffs' counsel forwarded the email to Kristian Nelson also representing Defendant. (Dardashti Decl., ¶ 8.) On December 31, 2025, Nelson responded to Plaintiffs' counsel's email and requested search terms and custodians to search for responsive documents which Plaintiffs' counsel provided the same day. (Dardashti Decl., ¶¶ 9-10.) Plaintiff's counsel's sent follow-up emails in an effort to continue to meet and confer on February 2, February 6, and February 17, 2026. (Dardashti Decl., ¶¶ 12-14.) On February 27, 2026, Defendant's counsel finally responded to Plaintiffs' counsel's emails stating that "Our client has searched the custodians you provided and the amount of data is over a TB." (Dardashti Decl., ¶ 15, Ex. I.) Defendant's counsel did not provide any proposal or timeline for production of responsive documents or supplemental responses. Although Defendant's sent a meet and confer letter regarding its demurrer, Defendant's counsel did not at any point respond to Plaintiffs' meet and confer letter dated December 18, 2025, other than to discuss search terms and custodians. Although Defendant did not sufficiently meet and confer, it has shown it has been working on collecting responsive documents. Defendant contends that the total universe of electronic communications potentially responsive to Plaintiff's Requests encompasses over 2,370,000

		documents and the delay in production has been due to the fact that Defendant has had to dedicate substantial time and resources to figuring out how to efficiently and cost-effectively review and produce these documents. (Levine Decl., ¶ 4.) Defendant states it is working with a vendor and has narrowed the pool of possible responsive documents to 213,000. (Levine Decl., ¶ 7.) Defendant has now produced 3,809 documents and intends to continue to produce documents on a rolling basis with an additional production planned for Thursday, May 14, 2026. (Opp., 4:19-21.) Since Defendant is producing documents on a rolling basis it is unclear which of the 82 requests remain in dispute. Since Defendant has shown it is working towards producing responsive documents, the court finds further conferences between counsel would be productive. Therefore, the parties are ordered to engage in additional attempts to meet and confer regarding the issues that remain in dispute, including a telephonic or in-person conference (not email). No later than 9 court days prior to the continued hearing, the parties are to file a Joint Statement which shall (1) describe the parties' attempts to meet and confer pursuant to this order, (2) identify each discovery request that remains in dispute, and (3) each party's position on the discovery request that remains in dispute. Plaintiff to give notice. MOTION NO. 2: The Application of Shamoor Anis to Appear Pro Hac Vice for defendants Brent Smith and Millrock Investment Fund 1, LLC is GRANTED. Moving attorney has satisfied all the requirements of California Rules of Court, Rule 9.40. Moving attorney to give notice.
2	24-01401853 <i>Anderson vs. Upward</i>	Motion to Compel Further Responses to Form Interrogatories Defendants Richard Upward, Shirlene Upward and Katherine Mojarro's Motion to Compel Further Responses to Form Interrogatories, and Request for Monetary Sanctions is DENIED. A party may move to compel further responses to interrogatories where the party deems the responses are evasive or incomplete, an exercise of the option to produce documents is unwarranted or the required specification of those documents is inadequate, and/or an objection in the response is without merit or too general. (Code Civ. Proc. § 2030.300(a); see <i>Best Products, Inc. v. Sup.Ct. (Granatelli Motorsports, Inc.)</i> (2004) 119 Cal.App.4th 1181, 1189-90 [motion to compel proper to challenge "boilerplate" responses].) The motion must be served within 45 days after verified responses or any verified supplemental responses are served, unless the parties agree in writing to extend the time. (Code Civ. Proc., § 2030.300, subd. (c).) The motion must be accompanied by a separate statement (Cal. Rules of Court, rule 3.1345(c).) The motion must also be accompanied by a

declaration stating facts showing a “reasonable and good faith attempt” to resolve informally the issues presented before filing the motion. (Code Civ. Proc., §§ 2016.040, 2030.300, subd. (b)(1); *Golf & Tennis Pro Shop, Inc. v. Sup.Ct. (Frye)* (2022) 84 Cal.App.5th 127, 138, fn. 9 [declaration must accompany notice of motion, along with all other documents supporting notice of motion].)

If a timely motion has been filed, the responding party bears the initial burden of justifying any objection or failure fully to answer the interrogatories. (*Coy v. Superior Court* (1962) 58 Cal.2d 210, 220-21; *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.)

The Court finds the moving parties have complied with the above requirements. The motion was timely filed on 4/30/26 pursuant to the parties’ agreement to extend the motion deadline. (See Barg Decl., ¶¶ 5-7, Ex. 6.) The motion is accompanied by a separate statement and a meet-and-confer declaration showing a reasonable and good faith attempt” to resolve this dispute informally.

Defendants Richard Upward (“Richard”), Shirlene Upward (“Shirlene”) and Katherine Mojarro (“Katherine”) (collectively, “Defendants”) move to compel further responses to Form Interrogatory, Set One, (“FROG”) No. 17.1(b)-(d) with respect to Request for Admission, Set One, (“RFA”) Nos. 3-5, 9, 12-15 and 19 (propounded by Richard and Shirlene); and 17.1(b)-(d) with respect to RFA Nos. 5-8, 11, 14-17 and 21 (propounded by Katherine). Defendants served duplicative RFAs on Plaintiff; however, Richard and Shirlene (collectively, the “Upwards”) used the same numbering sequence, while Katherine used a different numbering scheme. (Beg Decl., ¶¶ 2, 3, Exs. 2a-2c.)

Plaintiff denied the RFAs at issue, which ask her to admit she is aware no facts indicating Defendants: obtained any right to any property of Decedent for a wrongful use (Upwards RFA 3/Katherine RFA 5); obtained any right to any property of Decedent with intent to defraud Decedent (Upwards RFA 4/ Katherine RFA 6); exerted undue influence over Decedent at any time (Upwards RFA 5/Katherine RFA 7); acted fraudulently to have Decedent change her beneficiary designation on an IRA she owned (Upwards RFA 9/Katherine RFA 11); at any time requested that Decedent change her IRA beneficiary designation (Upwards RFA 12/ Katherine RFA 14); acted with fraud toward Decedent (Upwards RFA 13/ Katherine RFA 15); acted with malice toward Decedent (Upwards RFA 14/ Katherine RFA 16); or acted with oppression toward Decedent (Upwards RFA 15/Katherine RFA 17). The last RFA at issue asks Plaintiff to admit she is aware of no facts that she is still entitled to possession of Decedent’s IRA (Upwards RFA 19/Katherine RFA 21). (Beg Decl., ¶ 4, Exs. 4a-4c.)

Interrogatory 17.1 required Defendants to disclose the facts, persons with knowledge, and documents supporting each RFA response that was not an unqualified admission. With respect to the RFAs at issue, Plaintiff provided the same response to No. 17.1(b) regarding the facts supporting the denial: “Objection. Plaintiff objected to this request on

		the grounds it is vague, ambiguous, and unintelligible as phrased. Without waiving said objections, Plaintiff responds as follows: Pending further investigation and discovery, Plaintiff does not have any medical records documenting any diagnosed mental capacity issues. However, decedent was very ill and bed ridden requiring 24/7 care and was dependent and susceptible to undue influence. From the records received from Fidelity there were two purported beneficiary changes on or about January 7, 2022. Thereafter the account was restricted and further purported beneficiary changes were submitted on October 14, 2023.” (Beg Decl., ¶ 4, Exs. 3a-3c.) Defendants contend the response is evasive and non-responsive. The Court disagrees. Plaintiff provided responses identifying facts, persons with knowledge, and supporting documents for each request at issue. Although the responses are repetitive and rely on generalized assertions, Interrogatory 17.1 requires disclosure of the factual basis for a denial, not that the response be detailed, supported by extensive evidence or even persuasive. The responses, though minimal, do not warrant further responses. Plaintiff contends she provided all information available at the time the responses were served on 11/4/25. Defendants provide no evidence to the contrary. The parties’ discussion about additional Fidelity documents that Defendants received pursuant to their subpoena that Plaintiff did not also receive is immaterial. There is no evidence that Plaintiff received those documents before her responses were due. In fact, the parties appear to agree that Plaintiff ultimately received those documents in April 2026, which is long after Plaintiff served her responses. (See Shaver Decl., ¶¶ 7-10, Exs. D-F; Beg Decl. iso Reply, ¶ 6.) The motion is denied.
3	22-01263671 Chavez vs. Prime Construction Group Inc.	Motion to Enforce Settlement Plaintiff Cesar Chavez’s Motion to Enforce Settlement Agreement is DENIED. Plaintiff moves pursuant to Code of Civil Procedure section 664.6 to enforce the parties’ Settlement Agreement and enter judgment against defendants Prime Construction Group, Inc., Joe Manoukian, Joe Manoukian dba JM Floors Décor, and JM Flooring Concepts (collectively, Defendants) in the amount of \$17,000 plus 10% interest from the date of breach. On 3/19/26, the Court continued the hearing on this motion to allow Plaintiff more time to file a Supplemental Brief by April 9, 2026 close of business. (ROA 153.) Defendants were allowed to file an opposition by April 23, 2026 close of business. (ROA 153.) The parties timely did so.

Code of Civil Procedure section 664.6, subdivision (a), provides as follows: “If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.”

In ruling on a motion to enforce settlement, “the trial court acts as the trier of fact, determining whether the parties entered into a valid and binding settlement. Trial judges may consider oral testimony or may determine the motion upon declarations alone. When the same judge hears the settlement and the motion to enter judgment on the settlement, he or she may consult his [or her] memory.” (*Osumi v. Sutton* (2007) 151 Cal.App.4th 1355, 1360 [cleaned up].) However, “nothing in section 664.6 authorizes a judge to *create* the material terms of a settlement, as opposed to deciding what terms *the parties themselves* have previously agreed upon. (*Ibid.* [emphasis in original].)

Existence of Agreement

On 4/22/25, the parties reached a settlement agreement wherein Defendants agreed to pay Plaintiff \$17,000.00 within 45 days of that agreement with the Court to retain jurisdiction to enforce the agreement pursuant to Civil Code Section 664.6. (See Shabini Decl., ¶ 3, Ex. 1.) The agreement is signed by all parties and their counsel. (*Ibid.*) Plaintiff’s counsel attests that the attached agreement “is a true and correct copy of the settlement agreement reached in this matter.” (*Ibid.*)

The Court finds Plaintiff and Defendants entered into a valid and binding settlement agreement during the pendency of this litigation. (See Shabini Decl., ¶ 3, Ex. 1.)

Defendants dispute the existence of a settlement agreement on two grounds. First, Defendants argue an attorney’s signature on the agreement alone is insufficient and Plaintiff failed to demonstrate that all parties personally signed the agreement. Defendants’ argument lacks merit. Effective 1/1/25, a writing is signed by a party if it is signed by the party or the party’s attorney. (Code Civ. Proc., § 664.6 subd. (b)(1), (2); see also Civ. Code, § 1633.7, subd. (a) [“A ... signature may not be denied legal effect or enforceability solely because it is in electronic form.”].) Here, the settlement agreement is electronically signed by defendant Joe Manoukian on behalf of each defendant on 4/9/25 and defense counsel on 4/8/25. (See Shabini Decl., ¶ 3, Ex. 1.) This is sufficient. Notably, neither Joe Manourkian nor Defense counsel dispute signing the agreement.

Second, Defendants argue Plaintiff failed to establish a “meeting of the minds” as to material terms because disputes remain as to timing, performance conditions, and other essential terms. However, Defendants

		fail to state specifically how the terms of the attached agreement are incomplete or insufficiently definite. <u>Breach of Settlement Agreement</u> Defendants argue Plaintiff fails to establish that “payment was due and owing under enforceable conditions” and that “any alleged delay or nonpayment may be excused or subject to conditions precedent.” Defendants’ conclusory contentions lack analysis and citation to supporting evidence. Nevertheless, the Court agrees. While Plaintiff has established Defendants did not pay the settlement amount within 45 days of the agreement (see Shabini Decl. [Supplemental], ¶ 4), the agreement contains the following condition precedent: “20. <u>Condition Precedent – Dismissal</u>. Plaintiff acknowledges and agrees that a condition precedent to the receipt of the Settlement Amount is the full execution of this Agreement and the filing of a Request for Dismissal with prejudice of the entire action identified as Case No. 30 2022-01263671-CU-PO-CJC. <i>Defendants shall have no obligation to make any payment under this Agreement until such dismissal has been filed and confirmed.</i>” (See Shabini Decl., ¶ 3, Ex. 1, ¶ 20 [emphasis added].) To date, Plaintiff has not filed a Request for Dismissal as agreed. Therefore, Plaintiff has failed to satisfy a condition precedent. <u>Interest</u> Lastly, Defendants argue Plaintiff seeks interest and expanded relief not clearly set forth in the agreement. This argument is well taken. Plaintiff seeks interest of 10% per annum from the date of the breach, which is a request for prejudgment interest. However, the settlement agreement does not contain a provision for prejudgment interest. Therefore, there is no basis for awarding prejudgment interest. (See <i>Greentree Financial Group, Inc. v. Execute Sports, Inc.</i> (2008) 163 Cal.App.4th 495, 502 [reversing award of prejudgment interest not provided for in § 664.6 agreement: “The \$20,000 settlement sum in the stipulation (of entry of judgment) is unallocated, and may or may not have included . . . prejudgment interest. We find no basis for awarding . . . prejudgment interest in addition to the stipulated settlement sum.”].) The motion is DENIED.
6	24-01394637 <i>Dubai Holdings, LLC vs. Taifour</i>	Motion to Be Relieved as Counsel of Record The motion of attorney Ira Frzer to withdraw as attorney of record for Defendant Mahammad Taifour is GRANTED. (Code Civ. Proc. § 284, Cal. Rules of Court, rule 3.1362.) Attorney will be relieved as counsel of

		record for client effective upon filing of a proof of service of the signed order on client. Moving attorney is to give notice.
8	23-01361430 <i>Garcia vs. Ross Dress for Less, Inc.</i>	Motion for Summary Judgment and/or Adjudication Defendant Ross Dress for Less, Inc.’s Motion for Summary Judgment is DENIED. “In order to establish liability on a negligence theory, a plaintiff must prove duty, breach, causation and damages. [¶] A store owner exercises ordinary care by making reasonable inspections of the portions of the premises open to customers, and the care required is commensurate with the risks involved.” (<i>Ortega v. Kmart Corp.</i> (2001) 26 Cal.4th 1200, 1205 [cleaned up].) Defendant failed to satisfy its burden of disproving the element of breach of duty in Plaintiff’s claims. Defendant provides evidence of its employees swept the area where the incident occurred within at least 10 minutes of the accident occurring and there was no liquid on the ground. However, Defendant admits the liquid excreted from a small ball which was on the ground. (UMF 11.) Defendant does not establish for the purposes of its summary judgment motion when the ball was moved to the area around the incident. Further, viewing the evidence in a light most favorably to Plaintiff as the non-moving party, there is a dispute of material fact as to whether the ball itself constituted a tripping hazard which should have been removed by Defendant’s employee. Therefore, summary judgment and summary adjudication as to the causes of action for negligence and premise liability are denied.
9	25-01486648 <i>Ghadiri vs. Floor and Decor Outlets of American, Inc.</i>	Motion to Compel Further Responses to Form Interrogatories Defendant Floor and Décor Outlets of America, Inc.’s Motion to Compel Further Responses to Form Interrogatories is DENIED as moot. Defendant’s request for sanction is GRANTED in the reduced amount of \$1,343.33 against Plaintiff and his counsel of record, jointly and severally. Plaintiff provided supplemental responses on March 12, 2026 which substantively changed the responses. Thus, Defendant’s motion is moot. <u>Sanctions</u> “The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.300(d).)

		The Court finds Plaintiff did not act with substantial justification in substituting irrelevant information for relevant information and providing non-responsive answers in his first set of supplemental responses, thus, necessitating Defendant to file this Motion. Therefore, the request for sanctions is granted.
11	24-01423297 <i>Ito vs. HeyTutor, Inc</i>	Motion for Summary Judgment and/or Adjudication
12	24-01439966 <i>Loera vs. Hoang</i>	1) Motion to Compel Production 2) Motion to Compel Production <u>Motion No. 1:</u> Plaintiff's Motion to Compel Defendant Khiem Hoang's Production of Documents at Deposition is CONTINUED to 6/4/26. In the motion, Plaintiff moves to compel Defendant to produce documents in response to Plaintiff's request for production (RFP) seeking "ALL surveillance movies or photographs which have been taken of the Plaintiff, whether or not those movies/photographs actually depict Plaintiff." Defendant objected to the RFP based on attorney-client privilege and work product doctrine and premature disclosure of impeachment evidence. Defendant contends the motion was premature and improper because there was no attempt to meet and confer via phone, in person, or videoconference before filing the motion as required under the recently amended Code of Civil Procedure section 2016.040(a), which provides, "A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." Defendant further argues Plaintiff failed to move to compel further responses to prior discovery requests seeking the same information and that surveillance (or "sub rosa") evidence is subject to qualified work product protection. Plaintiff has not filed a timely reply brief. Trial is set for 6/15/26. If this dispute has not been resolved, counsel for the parties are ordered to engage in further efforts to meet and confer consistent with Code of Civil Procedure section 2016.040, including whether any responsive materials are discoverable under <i>Suezaki v. Superior Court of Santa Clara County</i> (1962) 58 Cal.2d 166. Plaintiff shall file and serve a supplemental brief, not to exceed five pages, no later than 5/27/26.

		Defendants may file a supplemental brief, not to exceed five pages, no later than 6/1/26. <u>Motion No. 2:</u> Plaintiff's Motion to Compel Defendant Thu Hoang's Production of Documents at Deposition is CONTINUED to 6/4/26 for the same reasons set out above. Because the motion raises identical issues, the parties shall address the issues in a single supplemental brief for both motions as set out above.
13	24-01439303 <i>Mehrvijeh vs. Mercedes-Benz USA, LLC</i>	1) Motion to Compel Deposition (Oral or Written) 2) Motion to Compel Production <u>Motion to Compel Deposition</u> Plaintiff Faranak Omidvar K. Mehrvijeh's Motion to Compel the Deposition of Defendant Mercedes-Benz USA, LLC's Person Most Knowledgeable and Production of Document at Deposition is DENIED as moot. The parties were ordered to submit a joint status report regarding any remaining disputes related to the Motion and no joint status report was filed. Thus, the Motion is moot. <u>Motion to Compel Further</u> Plaintiff Faranak Omidvar K. Mehrvijeh's Motion to Compel Further Responses to his Requests for Production, set two, is CONTINUED to —. "A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." (Code Civ. Proc., § 2016.040(a).) "A determination of whether an attempt at informal resolution is adequate ... involves the exercise of discretion." (<i>Obregon v. Superior Court</i> (1998) 67 Cal.App.4th 424, 431.) The Court finds the parties meet and confer efforts are inadequate and do not reflect a good faith attempt to resolve the issues informally. The parties are ordered to engage in additional meet and confer efforts, including an in-person, telephonic, or videoconference meeting of counsel, no later than 28 calendar days before the continued hearing date. The parties are ordered to file a joint statement of remaining issues, including a description of the additional meet and confer efforts, not to exceed 10 pages, no later than calendar 9 days before the hearing. The Court shall decide the issue of sanctions at the continued hearing date.

15	24-01435993 <i>Noroski vs. Sienna Palmer Ogbevoen, D.D.S., Inc.</i>	Motion for Summary Judgment and/or Adjudication Plaintiff Laura A. Noroski’s Motion for Summary Adjudication is DENIED. Defendants’ objections (ROA 323) are overruled except for Exhibit 9 and 10 (DMG America information on Icon treatment) which are sustained based on hearsay and lack of foundation. Plaintiff’s objections (ROA 334) are overruled. Plaintiff’s objections consist of extensive legal argument which should have been included in her points and authorities, rather than written objections formatted pursuant to California Rules of Court, Rule 3.1354. Plaintiff’s request for judicial notice of Plaintiff’s First Amended Complaint (FAC) is denied as unnecessary. The Court may consider the pleadings in this lawsuit without judicial notice. Plaintiff moves for summary adjudication as to the following issues: Issues 1-5: Defendants committed false advertising by (1) displaying the Jane B., Pam W., and Christin P. patient testimonials on Palm Dentistry’s website, (2) stating “locally owned and operated since 1984” on their website, and (3) stating “Mission Viejo proud since 1984.” Issues 6-7: Defendants committed medical battery by (1) performing a substantially different treatment than a “minimally invasive” “no drilling” ICON treatment, and (2) by removing pre-existing bonding affixed to Plaintiff’s tooth No. 10 against Plaintiff’s instructions. <u>Legal Standard:</u> Code of Civil Procedure section 437c(f)(1) states, “A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” Section 437c(c) provides, “The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court, and all inferences
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reasonably deducible from the evidence, except summary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact.”

Finally, section 437c(p) states,

“(p) For purposes of motions for summary judgment and summary adjudication:

(1) A plaintiff or cross-complainant has met that party's burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The defendant or cross-defendant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.”

“A plaintiff can obtain summary adjudication of a cause of action only by proving ‘each element of the cause of action entitling the party to judgment on that cause of action.’ As damages are an element of a breach of contract cause of action (*Rutherford Holdings, LLC v. Plaza Del Rey* (2014) 223 Cal.App.4th 221, 229, 166 Cal.Rptr.3d 864), a plaintiff cannot obtain judgment on a breach of contract cause of action in an amount of damages to be determined later.” (*Paramount Petroleum Corp. v. Superior Court* (2014) 227 Cal.App.4th 226, 241.)

False Advertising:

Plaintiff seeks summary adjudication as to her ninth cause of action for false advertising in violation of Business & Professions Code section 17500.

Section 17500 prohibits untrue or misleading advertising. It “broadly prohibit[s] false or misleading advertising, declaring that it is unlawful for any person or business to make or distribute any statement to induce the public to enter into a transaction ‘which is untrue or misleading, and which is known, or which by the exercise of reasonable care should be known, to be untrue or misleading.’” (*People v. Johnson & Johnson* (2022) 77 Cal.App.5th 295, 317.) “FAL actions may be brought by the Attorney General, designated public prosecutors, or ‘any person who has suffered injury in fact and has lost money or property’ as a result of a violation of the FAL. (§ 17535.) The trial court may enjoin FAL violators. (§ 17535.) Similar to the UCL, the Attorney General and other public prosecutors may seek civil penalties not to exceed \$2,500 for each violation of the FAL. (§ 17536, subd. (a).)” (*Id.* at p. 318)

Plaintiff seeks restitution of the money she paid to Defendants and equitable relief including issuance of an injunction for this violation

prohibiting Defendants’ false advertising and requiring Defendants to notify current and former patients of the false advertising and make corrective disclosures. (FAC, ¶¶ 127, 128.)

To prevail under a UCL false advertising claim, the plaintiff “must show that the misrepresentation was an immediate cause of the injury-producing conduct, the plaintiff need not demonstrate it was the only cause.” (*In re Tobacco II Cases* (2009) 46 Cal.4th 298, 326; see *People v. Johnson & Johnson* (2022) 77 Cal.App.5th 295, 326–327.) “[A] presumption, or at least an inference, of reliance arises wherever there is a showing that a misrepresentation was material. A misrepresentation is judged to be ‘material’ if ‘a reasonable man would attach importance to its existence or nonexistence in determining his choice of action in the transaction in question,’ and as such materiality is generally a question of fact unless the ‘fact misrepresented is so obviously unimportant that the jury could not reasonably find that a reasonable man would have been influenced by it.” (*In re Tobacco II Cases*, *supra*, 46 Cal.4th at 327.)

Here, Plaintiff alleges Defendants made untrue or misleading statements on their website. (FAC, ¶¶ 117-127.) Plaintiff alleges she viewed Defendants’ website in 2023 and relied on Defendants’ advertising when selecting Dr. Palmer as her new dentist. (Id.)

In her separate statement of undisputed material facts (UMFs), Plaintiff identifies five specific statements on Defendants’ website as fraudulent.

First, Plaintiff identifies a patient testimonial from “Jane B.,” stating they had been “going to Dr. Palmer for over 20 years,” and highly recommend her, but Plaintiff asserts the original patient testimonial said they had been going to “Dr. Schaub,” not Dr. Palmer, for 20 years. (UMFs 1-4.)

Defendants do not dispute the contents of the Jane B. testimonial or the inaccuracy of the quoted material as it pertains to Dr. Palmer. Defendant Palmer declares Defendants’ website is managed by a website manager, TNT Dental, which apparently changed the name of the dentist referenced in patient testimonials without Defendant’s knowledge. (¶¶ 14-15.)

Plaintiff states she read the testimonial before her first appointment. (UMF 8.) Plaintiff declares she would not have made an appointment with Defendants if she knew that they had replaced “Dr. Schaub” with “Dr. Palmer” in the testimonial.

However, Defendant disputes Plaintiff relied on the testimonial. Defendant asserts there is a triable issue as to materiality or reliance because Plaintiff was referred to the office by her mother. (Response to UMF 8.) Defendant Palmer declares Plaintiff “had been referred by her mother” and during the consultation Plaintiff never mentioned reviewing the website. (Palmer Decl., ¶¶ 6, 12-15.) Moreover, Defendants point out that Defendant Palmer openly displayed her diploma from 2015 on

the wall of her office, and she was 34 years old at the time of her appointment with Plaintiff. (Palmer Decl., ¶¶ 7, 11, 20.) Therefore, Defendants argue, it was unlikely Plaintiff actually believed Defendant Palmer had been treating patients for 20 years as stated in the Jane B. testimonial.

Plaintiff has shown the Jane B. testimonial was untrue because the testimonial was modified to replace “Dr. Schaub” with “Dr. Palmer.” However, based on the foregoing evidence, Defendants have demonstrated a dispute as to materiality, which “is generally a question of fact.” (*In re Tobacco II Cases*, *supra*, 46 Cal.4th at 327.) Therefore, the motion is denied as to Issue No. 1.

For the same reasons, the motion is denied as to Issue No. 2-3 which are related to other patient testimonials. Plaintiff similarly contends that website testimonials by patients “Pam W.” and “Christin P.” were altered by replacing “Dr. Schaub” with “Dr. Palmer” on Defendants’ website.

Even assuming such testimonials constituted false advertising, Defendants have demonstrated a dispute of fact as to materiality for the reasons stated above. Therefore, the motion is denied as to Issues 2 and 3.

Issues 4 and 5 relate to Defendants’ website statements that Defendants’ practice was locally owned and operated since 1984 and “Mission Viejo Proud Since 1984.” Plaintiff contends these statements were false because ownership of the dental practice transferred to Defendant Palmer in 2020 and operated under a new entity, “Palm Dentistry.” Defendants assert that the practice remained in the same location and kept many of the same patients as the former practice by Dr. Schaub. (Palmer Decl., ¶¶ 24-25.)

Again, as to Issues 4 and 5 there is a dispute as to materiality based on Plaintiff having been referred by her mother and the visible evidence that Defendant Palmer had only begun her dental practice recently. Moreover, whether the dental practice could reasonably be viewed as one continuous practice due to the retention of business goodwill and many customers by Dr. Palmer despite creation of a new business entity creates an additional question of fact as to Issues 4 and 5.

Medical Battery:

Plaintiff alleges Defendants committed medical battery by performing an invasive dental procedure without her consent. (FAC, ¶ 62.) Plaintiff alleges Defendants changed the shape and structure of Plaintiff’s teeth Nos. 6-11 and reshaped a tiny chip on tooth No. 10.

“A physician who performs any medical procedure without the patient’s consent commits a battery irrespective of the skill or care used. A typical medical battery case is where a patient has consented to a particular treatment, but the doctor performs a treatment that goes beyond the

consent.... For example, the patient consents to an electromyogram, a relatively uncomplicated procedure, but the doctor performs a myelogram, which involves a spinal puncture. Or, the patient consents to an operation on his right ear, but the doctor operates on the left ear. But not any deviation from consented-to medical treatment will sustain a medical battery claim—rather, the treatment given, or procedure performed, must be substantially different than that for which informed consent was given. Whether a treatment or procedure is ‘substantially different’ from that for which consent has been given, may, in the absence of any definitive case law, be a factual issue involving expert testimony.” (*Doe v. Kachru* (2025) 115 Cal.App.5th 175, 187–188 [cleaned up].)

In the motion, Plaintiff first contends medical battery occurred when Defendants performed a “substantially different treatment than a ‘minimally invasive,’ ‘no drilling’ icon treatment.” (Issue 6.) Second, Plaintiff contends “Defendants committed medical battery by removing preexisting bonding affixed to Plaintiff Noroski’s tooth no. 10, against her express instructions.”

Defendants respond that the treatment was at most “over-performed,” rather than a “substantially different treatment than that to which the patient consented” which could constitute medical battery.

Plaintiff’s expert Dr. Grossman opines that Plaintiff’s ongoing teeth sensitivity was caused by “a combination of over acid etching and/or the overly aggressive use of a drill of some type.” (Plaintiff’s Ex. F, ¶¶ 13, 14.) However, Defendant Palmer declares she used a flat-headed “Shofu polishing disk” during the Icon treatment of Plaintiff. (¶¶ 21-23.) Therefore, Defendants dispute Dr. Grossman’s opinion that a “drill” was used without Plaintiff’s consent. Rather, they contend, “At worst, Plaintiff’s evidence suggests that Dr. Palmer utilized these authorized tools to a degree that was ‘more than typical’—perhaps by leaving the etch on the teeth too long or applying more pressure with the polishing disc than anticipated.” (Opp. at p. 7.)

Defendants submit the declaration of Frederick Finzen, D.D.S. in opposition, who opines Dr. Grossman has exaggerated the damage to Plaintiff’s teeth and disagrees with Grossman’s opinions as to causation. (Defendants’ Ex. N, ¶¶ 7-25.) Finzen opines that the condition of Plaintiff’s teeth is consistent with Defendants having provided Icon treatment to which Plaintiff consented and Plaintiff’s tooth #10 was already chipped prior to treatment on 8/2/23. (¶¶ 11, 20, 22.)

Plaintiff argues Dr. Finzen’s declaration is a “sham declaration” because it contradicts Defendants’ prior responses to requests for admission and the opinions of Defendants’ other expert, Dr. Exler.

“The sham declaration doctrine comes into play when a plaintiff makes a clear and unequivocal admission in a deposition but, in a later declaration, contradicts that admission. In this situation, the declaration’s previously contradicted assertion alone cannot establish a triable issue of

		fact. This conclusion, however, follows only if there is no credible explanation for the supposed inconsistency. The doctrine does not apply when a reasonable explanation resolves the supposed discrepancy.” (<i>Tiffany Builders, LLC v. Delrahim</i> (2023) 97 Cal.App.5th 536, 547.) At this stage the Court finds the Finzen declaration sufficiently reliable to demonstrate a triable issue of fact. Defendant’s RFA answer stated she altered pre-existing bonding on Plaintiff’s teeth. (Plaintiff’s Ex. 15.) While Defendant does not directly contradict this admission in her own declaration, she presents evidence that there was no visible change or damage to the bonding and contends she only told Plaintiff “I have to take a little bit of the bonding away.” Defendant declares she noted a chipped edge of bonding, asked Plaintiff if she could repair it, and Plaintiff declined. (¶ 10.) It was included in Defendant’s proposed treatment plan. (¶ 16.) Defendant has sufficiently explained the discrepancy between the RFA responses and declarations of Defendant and Dr. Finzen for purposes of this motion. Moreover, although Plaintiff has not had the opportunity to take Dr. Finzen’s declaration she fails to show it is likely that the deposition would resolve all questions of fact raised in his declaration. Defendants have demonstrated triable issues of material fact as to this claim, including whether Plaintiff’s alleged damages were due to a “substantially different treatment” than Plaintiff consented to versus a negligently-performed treatment, and causation and the extent of damage to Plaintiff’s teeth. Therefore, the motion is denied as to Issues 6 and 7.
17	24-01397948 <i>Sanchez vs. Namhy</i>	Motion for Discovery Plaintiff Cristina Martinez Sanchez’s motion to compel further responses to requests for production of documents, set one, from Defendant Vishramal Gunasekara, as Trustee of the Vishramal & Manil Gunasekara Family Trust, is CONTINUED to _____. <i>All parties and/or counsel are ORDERED to appear in person; no Zoom appearances will be allowed.</i> As an initial matter, the Court finds the motion is timely. The parties agreed to extend the motion deadline to 11/23/25, which was a Sunday. (McElfish Decl., Ex. D.) When the last day to perform an act falls on a Sunday, “the time limit is extended to the next court day closer to trial.” (Code Civ. Proc., § 2016.060.) Plaintiff’s counsel acknowledged this consequence in an email on 11/21/25. (See McElfish Decl., Ex. D.) The parties/counsel have not engaged in sufficient attempts to meet and confer. (See Code Civ. Proc., § 2016.040; <i>Clement v. Alegre</i> (2009) 177 Cal.App.4th 1277, 1293 [Discovery Act requires moving party to declare he or she has made a serious attempt to obtain an informal resolution of each issue; rule designed to encourage parties to work out their differences informally to avoid necessity for formal order, which lessens burden on court and reduces unnecessary expenditure of

		resources by litigants]; <i>Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants</i> (2007) 148 Cal.App.4th 390, 402 [central precept of Discovery Act that discovery be self-executing].) Plaintiff's initial meet and confer letter failed to identify which responses Plaintiff deemed were deficient. Thereafter, Defendant failed to respond to Plaintiff's requests to meet and confer via telephone. The parties/counsel are ORDERED to engage in additional attempts to meet and confer <i>in person, telephonically, or over remote videoconferences (not email)</i>. If Defendant agrees to serve further responses, Defendant shall serve verified further responses no later than nine court days before the hearing. The parties/counsel are ORDERED to file a <i>JOINT STATUS REPORT, no longer than five pages</i>, indicating whether court intervention remains the only option to resolve this discovery dispute and, if so, which responses remain at issue, no later than five court days before the hearing. The parties are strongly encouraged to resolve this dispute cooperatively if possible. Failure to comply with this order may result in sanctions against the non-compliant party and/or their counsel pursuant to Code of Civil Procedure section 177.5. Clerk to give notice.
18	25-01458075 <i>Thayer vs. TFSC, Inc.</i>	Motion for Leave to File Amended Complaint Plaintiff Amber Thayer's motion for leave to file a first amended complaint is DENIED. Procedural issues Plaintiff has not filed a proof of service showing the reply was served on Defendant TFSC, Inc. (See Code Civ. Proc. § 1005, subd. (b); Cal. Rules of Court, rule 3.1300, subd. (c).) As such, the Court declines to consider the reply. Defendant's objections to Plaintiff's evidence (ROA 94) Defendant objects to portions of the declaration of Justin Hewgill. The Court OVERRULES Defendant's objections. Legal standard "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading" (Code Civ. Proc., § 473, subd. (a)(1).) "Motions for leave to amend are directed to the sound discretion of the judge" (<i>Howard v. County of San Diego</i> (2010) 184 Cal.App.4th 1422, 1428 [citing Code Civ. Proc., § 473, subd. (a)(1).]) "Generally,

leave to amend must be liberally granted, provided there is no statute of limitations concern, nor any prejudice to the opposing party, such as delay in trial, loss of critical evidence, or added costs of preparation.” (*Solit v. Tokai Bank, Ltd. New York Branch* (1999) 68 Cal.App.4th 1435, 1448 [cleaned up].)

Plaintiff seeks an order granting leave to file a first amended complaint (FAC) to add a new cause of action under the Private Attorneys General Act (PAGA).

Plaintiff filed her initial complaint on 2/3/25. (Hewgill Decl., ¶ 2.) On 3/6/25, Plaintiff filed a PAGA notice. (Hewgill Decl., ¶ 3.) On 5/13/25, Plaintiff attempted to file a FAC to add PAGA allegations, which was rejected. (Hewgill Decl., ¶¶ 4, 5; ROA 14.) On 7/29/25, Plaintiff filed an ex parte application for the Court to accept Plaintiff’s FAC, which was denied on 7/30/25. (Hewgill Decl., ¶¶ 6-7.) Plaintiff then filed this motion on 11/20/25.

Defendant contends amendment would be futile as Plaintiff’s PAGA claim is time-barred, Plaintiff had no automatic right to amend her complaint without leave of court, and Plaintiff failed to act diligently in seeking leave to amend.

“A PAGA action is subject to a one-year statute of limitations.” (*Arce v. The Ensign Group, Inc.* (2023) 96 Cal.App.5th 622, 630 [citation omitted].) “But because a would-be PAGA plaintiff can only bring her claim to court 65 days after submitting a prefiling notice to the [Labor and Workforce Development Agency], the statute of limitations is tolled for 65 days from the time the notice is submitted.” (*Ibid.* [citing Labor Code, § 2699.3, subs. (a)(2)(A), (d).])

Plaintiff acknowledges the 65-day period after filing her notice ended on 5/12/25. (Mtn. at 2:19-20; Hewgill Decl., ¶ 3.) Plaintiff therefore concedes her filing was untimely as she states she attempted to file a FAC a day later on 5/13/25. (Hewgill Decl., ¶ 4.)

Plaintiff contends that relying on Labor Code section 2699.3, subdivision (a)(2)(c) she was “under the impression that so long as Plaintiff filed her Amended Complaint to add PAGA allegations with 60 days of May 12 (which she did), she should be allowed to amend her Complaint by right.” (Mtn. at 2:23-3:6.)

Labor Code section 2699.3, subdivision (a)(2)(C) provides, “Notwithstanding any other provision of law, a plaintiff may as a matter of right amend an existing complaint to add a cause of action arising under this part at any time within 60 days of the time periods specified in this part.”

As an initial matter, Plaintiff provides no authority, Labor Code section 2699.3 subdivision (a)(2)(C) dispenses with the procedural requirement for seeking leave to amend a complaint once an answer has been filed. (*See* Code Civ. Proc., § 472.)

	Moreover, though Plaintiff attempted to file a FAC on 5/13/25, it was rejected by the court. (ROA 14.) The Clerk's comments in the 5/15/25 Notice of Rejection stated, "Leave of court is required or a signed stipulation and order, as an answer to complaint filed on 02/03/2025, see Roa #2." (ROA 14.) As such, as of 5/15/25, Plaintiff should have been aware the court required leave to file an amended complaint (absent a signed stipulation and order) given an answer had been filed. Despite the court rejecting the FAC and despite being aware of the 60-day period provided by Labor Code section 2699.3, subdivision (a)(2)(C), Plaintiff waited over two months after the rejection before filing an ex parte application on 7/29/25 to request the Court accept Plaintiff's FAC based on Labor Code section 2699.3, subdivision (a)(2)(C). The ex parte was denied on 7/30/25. (ROA 46.) Plaintiff then waited almost four months after the ex parte was denied before bringing this motion on 11/20/25. "[E]ven if a good amendment is proposed in proper form, unwarranted delay in presenting it may—of itself—be a valid reason for denial." (<i>Huff v. Wilkins</i> (2006) 138 Cal.App.4th 732, 746 [citation omitted].) Plaintiff has not demonstrated diligence in seeking leave as Plaintiff provides no explanation for the two months between her rejected attempt to file the FAC and moving ex parte nor the additional almost four months between the denial of the ex parte and the filing of this motion. As such, notwithstanding the liberal policy for allowing amendments to pleadings, the Court does not find leave to amend warranted where Plaintiff's proposed PAGA claim would be time-barred and Plaintiff has not demonstrated diligence in seeking leave to amend. The Court DENIES Plaintiff's motion for leave to file a first amended complaint.
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